

Bhavani vs Uma Shankar on 4 February, 2026

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 04-02-2026

CORAM

THE HON'BLE MR.JUSTICE S. SOUNTHAR

CRP No. 427 of 2026

Bhavani, W/o. Uma Shankar,
No.5, Rajendra Apartments,
Trustpakkam, Mandaveli,
Chennai 28.

Vs

Uma Shankar, S/o. Kesavan,
27/12, NH-3, Thilagar Street,
Maraimalai Nagar, Chengalpattu-603 209.

Prayer: Civil Revision Petition filed under Article 227 of Constitution to set aside the fair order and decretal order in so far as partly disallowance of maintenance petition for a sum of Rs.100000/- to the Petitioner and Rs.75000/- for her child and litigation expenses for a sum of Rs.25000/- by order dated 18.10.2025 passed in IA.No.7 of 2025 in OP.No.2559 of 2023 passed by the Learned VI Additional Family Court, Chennai.

For Petitioner(s):

Mr.A.S.Bhuvaneshwaran

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ORDER

This Civil Revision Petition has been filed challenging the order passed by the VI Additional Judge, Family Court, Chennai, granting interim maintenance to the child of the petitioner at Rs.25,000/- per month.

2. The petitioner herein/wife filed the main OP seeking divorce on the ground of cruelty. Pending main OP, she also filed an application in I.A.No.7 of 2025 under Section 24 of Hindu Marriage Act seeking interim maintenance at Rs.1,00,000/- per month for herself and her minor child. She also sought litigation expenses at Rs.50,000/-. The Family Court, by the impugned order, found that the petitioner is having decent income and hence, ordered maintenance at Rs.25,000/- per month to the child alone. The Family Court also ordered the respondent to pay litigation expenses at Rs.25,000/- to the petitioner. Not satisfied with the quantum of maintenance, the petitioner has come before this court.

3. The learned counsel for the petitioner would submit that the petitioner is Group-IV government employee, earning a sum of Rs.41,000/- per month and without considering the quantum of income earned by the respondent, the family court Judge committed error in dismissing the claim for maintenance by the petitioner. The learned counsel further submits that the quantum of _____ Page2 of 5 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 09/02/2026 01:35:53 pm) maintenance awarded by the Family court regarding the child is very much on lower side.

4. It is seen from the affidavit of Assets and Liability of the petitioner that she is a B.Sc graduate, working as Assistant under the Tamil Nadu Government and is earning a sum of Rs.41,000/- per month. Considering the fact that the petitioner is a government employee and is having decent income, the learned Family Court Judge came to the conclusion that the petitioner is not a person unable to maintain herself and therefore, not ordered maintenance to her.

5. In the affidavit of Assets and Liability, the petitioner claimed that the respondent is earning a sum of Rs.1,50,000/- per month. On the other hand, the respondent in his affidavit of Assets and Liability has stated that he is working as a Manager in a private company in Bengaluru and earning a sum of Rs.1,10,000/- per month. Taking into consideration the monthly income of the respondent, the Trial Court directed the respondent to pay a sum of Rs.25,000/- as maintenance to the minor child and also to pay litigation expenses at Rs.25,000/-. Having regard to the circumstances narrated above and the monthly income of both the parties, this court feels that the quantum of interim maintenance fixed by the Family Court for the minor child appear to be reasonable one. I do not find any error in the impugned order passed by the Family Court.

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6. Accordingly, this civil revision petition is dismissed. There shall be no order as to costs. Connected miscellaneous petition is closed.

04-02-2026 Index: Yes/No Speaking/Non-speaking order Neutral Citation: Yes/No MST To The VI Additional Judge, Family Court, Chennai.

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